NEW YORK STATE
PUBLIC SERVICE COMMISSION

Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Electric Service. **Case 25-E-0072**

Proceeding on Motion of the Commission as to the Rates, Charges, Rules and Regulations of Consolidated Edison Company of New York, Inc. for Gas Service. **Case 25-G-0073**

UTILISAVE, LLC
STATEMENT IN OPPOSITION TO APPROVAL OF THE JOINT PROPOSAL

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PRELIMINARY STATEMENT

UtiliSave, LLC ("UtiliSave") hereby submits this Statement in Opposition of the Joint Proposal ("JP") that Consolidated Edison Company of New York ("Con Edison" or the "Company") filed with the New York State Public Service Commission ("PSC" or the "Commission") on November 5, 2025. The JP advances Company billing practices that are not in the public interest because the JP (1) is not consistent with the regulatory, social, and economic policies of the Commission and the State and (2) does not strike a fair balance among the interests of ratepayers, investors, and the long-term soundness of the utility.

Importantly, as discussed herein, the Commission and the State have clear, longstanding policies seeking utility bill transparency. These policies should be reflected in Con Edison's practices. However, Con Edison's current tariff, and the one proposed in the JP, lack measures which would require the Company to provide valuable data to their customers – insulating Con Edison from their responsibility to bill transparently. Ratepayers should have access to, and/or be able to request, the backup information that Con Edison uses to render their gas and electricity bills, so that billing transparency is ubiquitous – in the Tariff, as well as in the laws and regulations of New York State. UtiliSave therefore requests that the Administrative Law Judges ("ALJs") recommend Commission modification and/or rejection of the JP.

PROCEDURAL HISTORY

Con Edison initiated the instant proceedings on January 31, 2025. UtiliSave and the other parties engaged in discovery before continuing settlement negotiations, which culminated with the JP.

UtiliSave now submits this Statement in Opposition, which sets forth our basis for seeking the JP's modification and/or rejection. The PSC should render an order remanding the cases to

establish temporary rates pending litigation, which incorporate the practices and policies UtiliSave advances herein.

ARGUMENT

THE JP IS NOT IN THE PUBLIC INTEREST AND SHOULD BE MODIFIED AND/OR REJECTED

"All Commission decisions, including those pertaining to proposed settlements," such as this JP, "must be, and appear to be, just, reasonable, and in the public interest."[1] Importantly, "[t]he threshold requirement for any such decision is that it be reached in accordance with applicable procedures."[2] If the PSC fails to follow these procedures, "the decision [is] less likely to be in the public interest and … will not be perceived as being in the public interest."[3] Procedural soundness includes both "the settlement's consistency with … the regulatory, economic, [and] social … policies of the Commission and the State" and "whether the settlement strikes a fair balance among the interests of ratepayers and investors and the long-term soundness of the utility…."[4]

As discussed herein, the JP does not meet the above requirements for being procedurally sound. Therefore, the Commission should modify and/or reject the JP and render an order remanding the cases to establish temporary rates pending litigation.

1. **The settlement is not consistent with the regulatory, economic, and social policies of the Commission and the State.**

[1] Case No. 92-M-0138, In the Matter of the Rules and Regulations of the Public Service Commission Contained in 16 NYCRR, Chapter I, Rules of Procedure --- Proposed Amendments to Subchapter A, General, Part 2, Hearings and Rehearings by the Addition of a New Section 2.6, Settlement Procedures, filed in C 11175, Opinion, Order and Resolution Adopting Settlement Procedures and Guidelines (Issued and Effective March 24, 1992) (the "Settlement Procedures and Guidelines") at p. 30.
[2] See id.
[3] See id.
[4] See id.

The Commission's policies regarding bill transparency have long been codified in 16 NYCRR §§ 11.16[5] and 271.2.[6] Since coming into office, Governor Hochul has enacted policies which further prioritize utility billing transparency. The following Senate and Assembly bills, while not all yet signed into law, reflect the State's policies, which should be reflected in the JP:

- Senate Bill S8128: An act to amend the public service law, in relation to enacting the "ratepayer transparency act".
    - This bill "[e]nacts the 'ratepayer transparency act' which requires bills utilized by public and private gas corporations, electric corporations and gas and electric corporations in levying charges for service to include separate categories for certain charges."[7] If passed, the "bill would require that energy utility bills include, at a minimum, three separate charges related to (1) supply costs, (2) delivery costs, and (3) charges approved by the [PSC] that have a statewide impact…."[8] It specifically "further[s] a policy of the state to increase transparency for ratepayers on what goes

[5] 16 NYCRR § 11.16 ("Each utility bill to a residential customer shall provide, in clear and understandable form and language, the charges for service. Each distribution utility to a residential customer shall include: (a) the name, address, and account number of the customer, dates of the present and previous meter readings, whether estimated or actual, amount consumed between present and previous readings, amount owed for the latest period, the date by which payments for the latest period may be paid without penalty, the penalty charge for late paid bills, credits from past bills and any amounts owed and unpaid from previous bills; (b) the customer's service classification, the billed demand, the meter-multiplier constant (if applicable), and any charges or credits which are adjustments to the base charges imposed by the distribution utility's tariff for the rate classification of that customer; (c) if the bill is issued under a budget or levelized amounts billed to the end of the period covered by the current bill, the dollar amount billed for tariff items during such period, and the debit or credit balances; and (d) an explanation of how the bill may be paid, including one or more local distribution utility offices at which it may be paid, and a statement that bills may be paid at other authorized offices or payment agencies Nothing in this section shall preclude a distribution utility from providing pertinent messages and information on the bill, provided such information does not interfere with the presentation of information required by this section.").

[6] 16 NYCRR § 271.2 ("If any corporation, partnership or person furnishing gas, electric, steam or water service elects to impose charge for a one-time late payment for such service, it shall show on each bill the amount billed, the amount that will be due, including the late payment charge, when the late payment charge becomes applicable.").

[7] https://www.nysenate.gov/legislation/bills/2025/S8128 (last accessed November 24, 2025).

[8] See id. (emphasis supplied).

into their utility bill" and "help[s] them further understand what impacts their utility bill."[9]

- The JP is not consistent with the State's policy in S8128 because it does not require the utility to include separate charges related to supply costs, delivery costs, and charges approved by the PSC that have a statewide impact. Nor does it increase the ratepayers' knowledge of what goes into and/or impacts their utility bill. The JP contains a single, paragraph-long section on "Bill Transparency", and states only that:

> The Company will itemize on customers' bills the dollar amount attributable to municipal property taxes and include a parenthetical next to the itemized charge that indicates 'NYC/Westchester/Other jurisdictions.' The Company will also include a reference in the bill to a Company website detailing the Company's property tax payments to the City of New York, Westchester, and Other jurisdictions. In Rate Year 1, the Company will hold a stakeholder meeting for input on the contents of the website. The Company will use its best efforts to implement this provision in Rate Year 1, but will implement no later than the commencement of RY 2.[10]

The JP does not contain any other mention of itemized charges, itemization, or the like.

- To be consistent with the State's policy on bill transparency in S8128, the JP should be modified to require Con Edison to itemize on their bills all charges, factors, and/or components which have been approved by the PSC and have a statewide impact, including, but not limited to:
  - British thermal units ("BTU") factor
  - Gas Cost Factor ("GCF")

[9] See id.
[10] See JP at p. 93-94.

- Market Supply Charge ("MSC")
- Weather Normalization Adjustment ("WNA")

- Senate Bill S8530: An act to amend the public service law, in relation to enacting the utility transparency and fair billing protection act.
  - This bill "[e]nacts the utility transparency and fair billing protection act to prevent consumers from being overcharged due to misclassified utility rates by mandating proactive account reviews, automatic adjustments, and ensuring clear communication between utilities and customers."[11] The "proposed legislation aims to prevent consumers from being overcharged by … ensuring clear communication between utilities and customers," and "improves transparency and fairness in utility billing practices."[12] It also "seeks to hold utilities accountable while safeguarding the financial well-being of consumers.
  - The JP is not consistent with the State's policy in S8530 because it does not ensure clear communication between utilities and customers, improve transparency in utility billing practices, or hold utilities accountable for billing errors. A critical component of utility-customer communication is the customer's access to its own usage and billing data. The JP contains a single, two-paragraph section on "Access to Usage and Billing Data":

> For the Application Programming Interface ("API") by which Con Edison's computer systems communicate with DCAS's computer systems, the Company will institute an API migration support and escalation process with DCAS during the migration to a new API. To that end, the Customer Data Sharing Program will continue its biweekly meetings with DCAS to review current status, testing results, data issues, and remediation steps related to API migration.

[11] https://www.nysenate.gov/legislation/bills/2025/S8530 (last accessed November 24, 2025).
[12] See id.

> Issues and remediation steps from each meeting will be documented and shared with all attendees. The status of these items will be reviewed in the subsequent meeting. Further, a DCAS-designated representative and the General Manager of Customer Operations Strategic Applications will meet monthly to discuss migration status and to escalate any issues that may affect the ability of DCAS to migrate to the new API before June 2026
>
> The Company's Vice President of Customer Operations will have the authority to delay the cutover to the new API and to effectuate any corrective actions that may be required in response to problems identified by the Company or raised by customers.

The JP does not contain any other reference to customer billing data access, and Con Edison's current processes do not permit customers to request access to certain types of usage, billing data, and formulas.

- To be consistent with the State's policy in S8530, the JP should be modified to require Con Edison to provide billing data backup, including but not limited to the below, upon a customer's request:
  - The subcomponents which comprise the average variable and fixed costs of a customer's gas costs (i.e., the subcomponents of the customer's GCF);
  - The formulas used to arrive at the customer's total GCF;
  - The granular forecast, real-time hedging data, and/or the raw input for the customer's MSC;
  - The formulas used to arrive at the customer's MSC;
  - The components and underlying data used to arrive at the customer's WNA; and
  - The geographic region/zone and therm factor used to arrive at the customer's BTU factor.

- The JP should also be modified to require Con Edison to provide all customers with access to DCAS upon request.

- Senate Bill S7869: An act to amend the public service law, in relation to proposed rate changes for gas and electric service.
  - "The purpose of this bill is to provide transparency related to proposed changes in supply and delivery costs in utility rate cases for gas and electric service."[13] It would require the PSC to "make available a one-page summary of major rate cases, both after their initiation and upon conclusion, to include a breakdown of the proposed changes to the supply and delivery charges, respectively." [14] According to the State, "[a]s rates continue to rise … in record-breaking proposed rate hikes, allowing customers to know what portions of that rate increase are due to commodity prices and maintenance of the distribution network, will provide necessary transparency."[15]
  - The JP is not consistent with the State's policy in S7869 because it fails to breakdown the proposed changes to the supply and delivery charges that will be reflected on ratepayers' bills should the Commission accept the JP.
  - To be consistent with the State's policy in S7869, the JP should be modified to contain a breakdown of the proposed changes to each supply and demand component that makes up a ratepayer's bill.

- Senate Bill S9188: An act to amend the public service law, in relation to information required to be published prior to a major rate change by a public gas or electric utility.

[13] https://www.nysenate.gov/legislation/bills/2025/S7869 (last accessed November 24, 2025).
[14] See id.
[15] See id.

- This bill, signed into law effective November 25, 2025, aims "to make utility rate cases within the [PSC] more transparent and accessible to the public," by "requir[ing] the [PSC] to make available a one-page summary of major rate cases, both after their initiation and upon conclusion, which would include important information about the … potential financial impacts [to] ratepayers."[16] The bill "would also require the summary to be published on [the PSC's] website and shared with newspapers and legislators."[17]
- The State explains that rate cases are "complicated, technical, and overwhelming process[es] which often ha[ve] immense consequences for the average citizen of the state."[18] It further notes that "[w]hile all of the documents of this process are in principle available to the public, finding them, sorting through them, and making sense of them can be nothing short of a full-time job."[19]
- The JP is not consistent with the State's policy in S9188. Similar to rate cases, utility tariffs and rate filings are complicated, technical, and overwhelming to digest. The average ratepayer has access to these documents but is unlikely to make sense of the rates and bill components listed within them. The JP does not seek to increase customer awareness and understanding of the Company's rates.
- To be consistent with the State's policy in S9188, the JP should be modified to allow customers to obtain a breakdown of all charges comprising their bill upon request to the utility. This breakdown should include the formulas and raw data used to arrive at each billing component.

[16] https://www.nysenate.gov/legislation/bills/2023/S9188 (last accessed November 24, 2025).
[17] See id.
[18] See id.
[19] See id.

- Senate Bill S1194A: An act to amend the public service law, in relation to requiring gas and electric corporations to provide forty-five days' notice to customers whenever there is a service rate or charge increase.
    - "The purpose of this bill is to notify customers when their utility rate will increase."[20]
    - The JP is inconsistent with the policy of S1194A because it does not contain a mechanism for notifying customers of a rate increase.
    - To be consistent with the State's policy in S1194A, the JP should be modified to require the Company to notify customers of a rate and/or charge increase 45 days before the increase takes effect. Such notification should be made either on the customer's bill or in a separate written notice, and should include a breakdown of the rate and/or charge that will increase, complete with raw data and the formula used to derive the rate and/or charge.

2. The settlement does not strike a fair balance among the interests of ratepayers, investors, and the long-term soundness of the utility.

As discussed above, it is in the interest of ratepayers for the JP to increase bill transparency and customer access to utility billing data. Indeed, transparency of this nature should be a foundational requirement of all billing practices. It is not reasonable or in the standard of acceptable business practices that a business should be permitted to assess charges but not provide the underlying components of the bill.

Unfortunately, the JP fails to take these interests into account. Therefore, UtiliSave proposes the following modifications to the JP:

[20] https://www.nysenate.gov/legislation/bills/2025/S1194/amendment/A (last accessed November 24, 2025).

- Require Con Edison to itemize on their bills all charges, factors, and/or components which have been approved by the PSC and have a statewide impact, including, but not limited to:
    - British thermal units ("BTU") factor
    - Gas Cost Factor ("GCF")
    - Market Supply Charge ("MSC")
    - Weather Normalization Adjustment ("WNA")
- Require Con Edison to provide billing data backup, including but not limited to the below, upon a customer's request:
    - The subcomponents which comprise the average variable and fixed costs of a customer's gas (i.e., the subcomponents of the customer's GCF);
    - The formulas used to arrive at the customer's total GCF;
    - The granular forecast, real-time hedging data, and/or the raw input for the customer's MSC;
    - The formulas used to arrive at the customer's MSC;
    - The components and underlying data used to arrive at the customer's WNA; and
    - The geographic region/zone and therm factor used to arrive at the customer's BTU factor;
- Require Con Edison to provide all customers with access to DCAS upon request.
- Contain a breakdown of the proposed changes to <u>each</u> supply and demand component that makes up a ratepayer's bill as a result of the JP;

- Require Con Edison to provide a breakdown of all charges comprising a customer's bill upon request, including the formulas and raw data used to arrive at each billing component; and
- Require the Company to (1) notify customers of a rate and/or charge increase 45 days before the increase takes effect, either on the customer's bill or in a separate written notice, and (2) include a breakdown of the rate and/or charge that will increase, complete with raw data and the formula used to derive the rate and/or charge.

Importantly, the increased transparency UtiliSave proposes would be of minimal cost to the utility but is a necessary requirement to ensure fair and transparent billing to customers. The metrics/data/formulas we seek transparency of sought are already collected by utility to bill – they just need to be accessible to the ratepayer either as monthly filing with utility or spreadsheet upon request. Therefore, UtiliSave's proposed changes would benefit ratepayers, as well as the Company's investors and longevity - who would suffer little to no negative fiscal impact while experiencing increased customer satisfaction and a better public perception.

CONCLUSION

For the reasons set forth above, the ALJ should recommend that the PSC (1) modify and/reject the JP, and (2) render an order remanding the cases to establish temporary rates pending litigation, which incorporate the practices and policies UtiliSave advances herein.

Respectfully submitted,

/s/ Michael Steifman, Esq.
UtiliSave, LLC

Date: November 26, 2025